Vermont Department of Financial Regulation

Pharmacy Benefit Manager (PBM) Complaint Form

Pursuant to Act 127 of 2024

Before Filing a Complaint

Before you file a Pharmacy Benefit Management Company (PBM) complaint with the Vermont Department of Financial Regulation (DFR), you should first contact the PBM to resolve the issue. Document phone calls to the company, keep copies of all written communications, and complete all levels of contractual appeals available. If you are still unable to resolve your complaint, you may contact DFR for assistance. Refer to Section III of the complaint form for a list of laws and regulations applying to PBMs for which DFR can provide assistance.

Instructions for Filing a PBM Complaint

To file a complaint against a PBM for violation of law or rule, (1) fill out this PBM Complaint Form to the best of your ability and (2) submit along with any supporting documentation via email at: dfr.insuranceinfo@vermont.gov

Section I: Complainant Information

Name of Complainant: _____

I am filing this complaint as:

☐ Covered Individual
☐ Pharmacy
☐ Health Insurer
☐ Other

Address: _____ City, State, Zip: _____

Email: _____ Daytime phone number: _____

Are you represented by legal counsel? ☐ Yes ☐ No*add language from Insurance complaint*
If yes, name of attorney: _____

Have you previously reported this to another agency? ☐ Yes ☐ No
If yes, which agency: _____

Section II: General Information

Patient ID #: _____ Date of Birth(optional): _____

Rx #: _____ Drug Name: _____ Quantity Dispensed: _____
Claim #: _____

Pharmacy Name: _____ NAB/NCPDP #: _____

Pharmacist/Contact: _____ Email: _____

Address: _____ City, State, Zip: _____

PBM Name: _____ PBM Plan Code: _____ PBM BIN #: _____

PBM Contact Name: _____ PBM Phone: _____

Does this involve a Self-Funded Plan? ☐ Yes ☐ No ☐ Unsure

Health Insurance Company: _____

Plan Type: ☐ Individual ☐ Group Employer Name: _____

Group Contract #: _____ Policy #: _____ Rx Bin: _____ PCN #: _____
NDC #: _____

- If you have multiple Covered Individuals who are served by the same PBM, you may use this additional spreadsheet to submit batch information to the DFR.

*Note: You must download a pdf of this PBM Complaint Form to access the fillable sections.

Section III: Complaint Details

Please select all that apply to your complaint. Referenced Vermont statutes are from 18 V.S.A. Chapter 77 (Act 127):

☐ Gag Clause Violation (18 V.S.A. § 3612(a-b))
☐ Spread Pricing Violation (18 V.S.A. § 3612(f))
☐ MAC Pricing Issues (18 V.S.A. § 3631(c))
☐ Contracting Discrimination / Retaliation (18 V.S.A. § 3612(d))
☐ Unequal Reimbursement to Non-Affiliated Pharmacies (18 V.S.A. § 3631(d))
☐ Formulary Change Without Notice (18 V.S.A. § 3631(f))
☐ 340B Discrimination (18 V.S.A. § 3631(g))
☐ Delayed Claims Payment (18 V.S.A. § 3631(a))
☐ Co-Pay Overcharges / Accumulator Abuse (18 V.S.A. § 3612(e))
☐ PBM Licensure or Registration Issue (18 V.S.A. § 3611)
☐ Other – Please describe below

Describe your PBM complaint in detail, including dates, actions taken, and responses received:

Have you filed an appeal with the PBM? ☐ Yes ☐ No

Date of Appeal: _____ Date PBM Responded: _____

Outcome of Appeal: _____

What resolution do you consider fair?

Section IV: Supporting Documentation

Please attach any documentation that supports your complaint. Examples include:

- Copies of denial letters or correspondence with the PBM
- Documentation of appeal processes and outcomes

- Reimbursement claims, MAC appeals, or invoices
- Screenshots or emails showing price discrepancies or formulary changes

Section V: Authorization

To the best of my knowledge, the above statement is true. I authorize the Vermont Department of Financial Regulation to review and share information relevant to this complaint, including protected health information, to the extent necessary for resolution.

Signature: _____ Title/Position: _____ Date: _____